

Budapest - Regulations

RULE 2

Title: Requirements for International Depositary Authorities

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 2, 2023

Plain English Summary:

Rule 2 establishes requirements for an International Depositary Authority (IDA). It requires the authority to have suitable staff, facilities, safety measures, and procedures to keep deposited microorganisms viable and uncontaminated and to provide samples properly. For an Ayurvedic invention involving a microorganism, this matters because the biological material may need to be deposited with an institution capable of safely storing and supplying samples for patent purposes.

The Exact Legal Text:

Rule 2

International Depositary Authorities

2.1 Legal Status

Any international depositary authority may be a government agency, including any public institution attached to a public administration other than the central government, or a private entity.

2.2 Staff and Facilities

The requirements referred to in Article 6(2)(ii) shall include in particular the following:

- (i) the staff and facilities of any international depositary authority must enable the said authority to store the deposited microorganisms in a manner which ensures that they are kept viable and uncontaminated;
- (ii) any international depositary authority must, for the storage of microorganisms, provide for sufficient safety measures to minimize the risk of losing microorganisms deposited with it.

2.3 Furnishing of Samples

The requirements referred to in Article 6(2)(viii) shall include in particular the requirement that any international depositary authority must furnish samples of deposited microorganisms in an expeditious and proper manner.

Keywords/Triggers:

international depositary authority, microorganism storage, biological material storage, microorganism viability, patent deposit facility, microorganism sample, IDA requirements, biological patent

Rule 5

Title: Failure of an International Depositary Authority

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 5, 2023

Plain English Summary:

Rule 5 explains what happens when an International Depositary Authority stops performing its functions or refuses to accept microorganisms that it is supposed to accept. It provides for the transfer of deposited microorganisms, records, and communications to another depositary authority so that the depositor's patent-related deposit is not unnecessarily lost.

For a biotechnology-related Ayurvedic invention, this provides continuity if the institution holding the deposited microorganism can no longer perform its required functions.

The Exact Legal Text:

Rule 5

Defaults by the International Depositary Authority

5.1 Discontinuance of Performance of Functions in Respect of Deposited Microorganisms

(a) If any international depositary authority temporarily or definitively discontinues the performance of any of the tasks it should perform under the Treaty and these Regulations in relation to any microorganisms deposited with it, the Contracting State or intergovernmental industrial property organization which, in respect of that authority, has furnished the assurances under Article 6(1) shall:

(i) ensure, to the fullest extent possible, that samples of all such microorganisms are transferred promptly and without deterioration or contamination from the said authority ("the defaulting authority") to another international depositary authority ("the substitute authority");

(ii) ensure, to the fullest extent possible, that all mail or other communications addressed to the defaulting authority, and all files and other relevant information in the possession of that authority, in respect of the said microorganisms are promptly transferred to the substitute authority;

(iii) ensure, to the fullest extent possible, that the defaulting authority promptly notifies all depositors affected of the discontinuance of the performance of its functions and the transfers effected;

(iv) promptly notify the Director General of the fact and the extent of the discontinuance in question and of the measures which have been taken by the said Contracting State or intergovernmental industrial property organization under (i) to (iii).

(b) The Director General shall promptly notify the Contracting States and the intergovernmental industrial property organizations as well as the industrial property offices of the notification received under paragraph (a)(iv); the notification of the Director General and the notification received by him shall be promptly published by the International Bureau.

(c) Under the applicable patent procedure it may be required that the depositor shall, promptly after receiving the receipt referred to in Rule 7.5, notify to any industrial property office with which a patent application was filed with reference to the original deposit the new accession number given to the deposit by the substitute authority.

(d) The substitute authority shall retain in an appropriate form the accession number given by the defaulting authority, together with the new accession number.

(e) In addition to any transfer effected under paragraph (a)(i), the defaulting authority shall, upon request by the depositor, transfer, as far as possible, a sample of any microorganism deposited with it together with copies of all mail or other communications and copies of all files and other relevant information referred to in paragraph (a)(ii) to any international depositary authority indicated by the depositor other than the substitute authority, provided that the depositor pays any expenses to the defaulting authority resulting from the said transfer. The depositor shall pay the fee for the storage of the said sample to the international depositary authority indicated by him.

(f) On the request of any depositor affected, the defaulting authority shall retain, as far as possible, samples of the microorganisms deposited with it.

5.2 Refusal to Accept Certain Kinds of Microorganisms

(a) If any international depositary authority refuses to accept for deposit any of the kinds of microorganisms which it should accept under the assurances furnished, the Contracting State or intergovernmental industrial property organization which, in respect of that authority, has made the declaration referred to in Article 7(1)(a) shall promptly notify the Director General of the relevant facts and the measures which have been taken.

(b) The Director General shall promptly notify the other Contracting States and intergovernmental industrial property organizations of the notification received under paragraph (a); the notification of the Director General and the notification received by him shall be promptly published by the International Bureau.

Keywords/Triggers:

depository authority failure, microorganism transfer, substitute depository authority, patent deposit continuity, microorganism refusal, biological material transfer, patent deposit protection

Rule 6

Title: Making an Original or New Microorganism Deposit

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 6, 2023

Plain English Summary:

Rule 6 sets out the practical requirements for making an original or new microorganism deposit. The depositor must provide information about the microorganism, including conditions for cultivation, storage and viability testing, identification information, and relevant health or environmental hazards. This is one of the most important Regulations for your Ayurveda patent RAG, because it tells a researcher what information and material must accompany a microorganism deposit used in a patent procedure.

The Exact Legal Text:

Rule 6

Making the Original Deposit or New Deposit

6.1 Original Deposit

(a) The microorganism transmitted by the depositor to the international depository authority shall, except where Rule 6.2 applies, be accompanied by a written statement bearing the signature of the depositor and containing:

(i) an indication that the deposit is made under the Treaty and an undertaking not to withdraw it for the period specified in Rule 9.1;

(ii) the name and address of the depositor;

(iii) details of the conditions necessary for the cultivation of the microorganism, for its storage and for testing its viability and also, where a mixture of microorganisms is deposited, descriptions of the components of the mixture and at least one of the methods permitting the checking of their presence;

(iv) an identification reference (number, symbols, etc.) given by the depositor to the microorganism;

(v) an indication of the properties of the microorganism which are or may be dangerous to health or the environment, or an indication that the depositor is not aware of such properties.

(b) It is strongly recommended that the written statement referred to in paragraph (a) should contain the scientific description and/or proposed taxonomic designation of the deposited microorganism.

6.2 New Deposit

(a) Subject to paragraph (b), in the case of a new deposit made under Article 4, the microorganism transmitted by the depositor to the international depositary authority shall be accompanied by a copy of the receipt of the previous deposit, a copy of the most recent statement concerning the viability of the microorganism which was the subject of the previous deposit indicating that the microorganism is viable and a written statement bearing the signature of the depositor and containing:

(i) the indications referred to in Rule 6.1(a)(i) to (v);

(ii) a declaration stating the reason relevant under Article 4(1)(a) for making the new deposit, a statement alleging that the microorganism which is the subject of the new deposit is the same as that which was the subject of the previous deposit, and an indication of the date on which the depositor received the notification referred to in Article 4(1)(a) or, as the case may be, the date of the publication referred to in Article 4(1)(e);

(iii) where a scientific description and/or proposed taxonomic designation was/were indicated in connection with the previous deposit, the most recent scientific description and/or proposed taxonomic designation as communicated to the international depositary authority with which the previous deposit was made.

(b) Where the new deposit is made with the international depositary authority with which the previous deposit was made, paragraph (a)(i) shall not apply.

(c) For the purposes of paragraphs (a) and (b) and of Rule 7.4, “previous deposit” means,

(i) where the new deposit has been preceded by one or more other new deposits: the most recent of those other new deposits;

(ii) where the new deposit has not been preceded by one or more other new deposits: the original deposit.

6.3 Requirements of the International Depositary Authority

(a) Any international depositary authority may require:

(i) that the microorganism be deposited in the form and quantity necessary for the purposes of the Treaty and these Regulations;

(ii) that a form established by such authority and duly completed by the depositor for the purposes of the administrative procedures of such authority be furnished;

(iii) that the written statement referred to in Rule 6.1(a) or 6.2(a) be drafted in the language, or in any of the languages, specified by such authority, it being understood that such specification must at least include the official language or languages indicated under Rule 3.1(b)(v);

(iv) that the fee for storage referred to in Rule 12.1(a)(i) be paid; and

(v) that, to the extent permitted by the applicable law, the depositor enter into a contract with such authority defining the liabilities of the depositor and the said authority.

(b) Any international depositary authority shall communicate any such requirements and any amendments thereof to the International Bureau.

6.4 Acceptance Procedure

(a) The international depositary authority shall refuse to accept the microorganism and shall immediately notify the depositor in writing of such refusal and of the reasons therefor:

(i) where the microorganism is not of a kind of microorganism to which the assurances furnished under Rule 3.1(b)(iii) or 3.3 extend;

(ii) where the properties of the microorganism are so exceptional that the international depositary authority is technically not in a position to perform the tasks in relation to it that it must perform under the Treaty and these Regulations;

(iii) where the deposit is received in a condition which clearly indicates that the microorganism is missing or which precludes for scientific reasons the acceptance of the microorganism.

(b) Subject to paragraph (a), the international depositary authority shall accept the microorganism when all the requirements of Rule 6.1(a) or 6.2(a) and Rule 6.3(a) are complied with. If any of those requirements are not complied with, the international depositary authority shall immediately notify the depositor in writing of that fact and invite him to comply with those requirements.

(c) When the microorganism has been accepted as an original or new deposit, the date of that original or new deposit, as the case may be, shall be the date on which the microorganism was received by the international depositary authority.

(d) The international depositary authority shall, on the request of the depositor and provided that all the requirements referred to in paragraph (b) are complied with, consider a microorganism, deposited before the acquisition by such authority of the status of international depositary authority, to have been received, for the purposes of the Treaty, on the date on which such status was acquired.

Keywords/Triggers:

original microorganism deposit, new microorganism deposit, patent deposit requirements, microorganism cultivation conditions, viability testing, biological material patent, deposit acceptance, patent microorganism disclosure

RULE 7

Title: Receipt for Deposit of a Microorganism

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 7, 2023

Plain English Summary:

Rule 7 establishes the receipt that an International Depositary Authority must issue when it receives and accepts a microorganism. The receipt records important information such as the depositor, deposit date, identification reference, and accession number.

For an Ayurvedic invention involving a microorganism, this receipt provides the formal record that the biological material has been deposited for patent-procedure purposes.

The Exact Legal Text:

Rule 7
Receipt

7.1 Issuance of Receipt

The international depositary authority shall issue to the depositor, in respect of each deposit of microorganism effected with it or transferred to it, a receipt in attestation of the fact that it has received and accepted the microorganism.

7.2 Form; Languages; Signature

- (a) Any receipt referred to in Rule 7.1 shall be established on a form called an “international form,” a model of which shall be established by the Director General in those languages which the Assembly shall designate.
- (b) Any words or letters filled in the receipt in characters other than those of the Latin alphabet shall also appear therein transliterated in characters of the Latin alphabet.
- (c) The receipt shall bear the signature of the person or persons having the power to represent the international depositary authority or that of any other official of that authority duly authorized by the said person or persons.

7.3 Contents in the Case of the Original Deposit

Any receipt referred to in Rule 7.1 and issued in the case of an original deposit shall indicate that it is issued by the depositary institution in its capacity of international depositary authority under the Treaty and shall contain at least the following indications:

- (i) the name and address of the international depositary authority;
- (ii) the name and address of the depositor;
- (iii) the date of the original deposit as defined in Rule 6.4(c);
- (iv) the identification reference (number, symbols, etc.) given by the depositor to the microorganism;
- (v) the accession number given by the international depositary authority to the deposit;
- (vi) where the written statement referred to in Rule 6.1(a) contains the scientific description and/or proposed taxonomic designation of the microorganism, a reference to that fact.

7.4 Contents in the Case of the New Deposit

Any receipt referred to in Rule 7.1 and issued in the case of a new deposit effected under Article 4 shall be accompanied by a copy of the receipt of the previous deposit (within the meaning of Rule 6.2(c)) and a copy of the most recent statement concerning the viability of the microorganism which was the subject of the previous deposit (within the meaning of Rule 6.2(c)) indicating that the microorganism is viable, and shall at least contain:

- (i) the name and address of the international depositary authority;
- (ii) the name and address of the depositor;
- (iii) the date of the new deposit as defined in Rule 6.4(c);

- (iv) the identification reference (number, symbols, etc.) given by the depositor to the microorganism;
- (v) the accession number given by the international depositary authority to the new deposit;
- (vi) an indication of the relevant reason and the relevant date as stated by the depositor in accordance with Rule 6.2(a)(ii);
- (vii) where Rule 6.2(a)(iii) applies, a reference to the fact that a scientific description and/or a proposed taxonomic designation has/have been indicated by the depositor;
- (viii) the accession number given to the previous deposit (within the meaning of Rule 6.2(c)).

Keywords/Triggers:

microorganism deposit receipt, patent deposit receipt, accession number, original deposit, new deposit, international depositary authority, biological patent record, deposit date

RULE 8

Title: Scientific Description and Taxonomic Designation

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 8, 2023

Plain English Summary:

Rule 8 allows the depositor to later communicate or amend the scientific description and/or proposed taxonomic designation of a deposited microorganism. The International Depositary Authority records the communication and can provide an attestation to the depositor.

For an Ayurvedic biotechnology invention, this can be relevant when the microorganism's scientific identification needs to be clarified or updated after the initial deposit.

The Exact Legal Text:

Rule 8

Later Indication or Amendment of the Scientific Description and/or Proposed Taxonomic Designation

8.1 Communication

The depositor may, at any time, communicate in writing to the international depositary authority the scientific description and/or proposed taxonomic designation of the deposited microorganism or any amendment thereof.

8.2 Attestation

The international depositary authority shall, on the request of the depositor having made the communication referred to in Rule 8.1, deliver to him an attestation showing the data referred to in Rule 8.1(b)(i) to (iv) and the date of receipt of such communication.

Keywords/Triggers:

scientific description, taxonomic designation, microorganism identification, patent microorganism, biological material classification, microorganism amendment, deposit identification

RULE 9

Title: Storage and Secrecy of Deposited Microorganisms

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 9, 2023

Plain English Summary:

Rule 9 establishes how long a deposited microorganism must be stored and requires the International Depositary Authority to maintain confidentiality. A microorganism must generally be stored for at least 30 years from the date of deposit, subject to the additional five-year requirement described in the Rule.

For a patent involving biological material, this provides long-term preservation and confidentiality of the deposited microorganism.

The Exact Legal Text:

Rule 9

Storage of Microorganisms

9.1 Duration of the Storage

Any microorganism deposited with an international depositary authority shall be stored by such authority, with all the care necessary to keep it viable and uncontaminated, for a period of at

least five years after the most recent request for the furnishing of a sample of the deposited microorganism was received by the said authority and, in any case, for a period of at least 30 years after the date of the deposit.

9.2 Secrecy

No international depositary authority shall give information to anyone whether a microorganism has been deposited with it under the Treaty. Furthermore, it shall not give any information to anyone concerning any microorganism deposited with it under the Treaty except to an authority, natural person or legal entity which is entitled to obtain a sample of the said microorganism under Rule 11 and subject to the same conditions as provided in that Rule.

Keywords/Triggers:

microorganism storage, 30-year deposit, biological material preservation, patent deposit confidentiality, microorganism secrecy, deposited microorganism, sample request, patent biological material

RULE 10

Title: Viability Testing of Deposited Microorganisms

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 10, 2023

Plain English Summary:

Rule 10 requires the International Depositary Authority to test whether a deposited microorganism remains viable. Testing must occur after deposit or transfer, at reasonable intervals, when technically necessary, or upon the depositor's request.

This is important for a microorganism-based Ayurvedic invention because the deposited biological material needs to remain viable so that samples can be provided when legally required.

The Exact Legal Text:

Rule 10

Viability Test and Statement

10.1 Obligation to Test

The international depositary authority shall test the viability of each microorganism deposited with it:

- (i) promptly after any deposit referred to in Rule 6 or any transfer referred to in Rule 5.1;
- (ii) at reasonable intervals, depending on the kind of microorganism and its possible storage conditions, or at any time, if necessary for technical reasons;
- (iii) at any time, on the request of the depositor.

10.2 Viability Statement

(a) The international depositary authority shall issue a statement concerning the viability of the deposited microorganism:

- (i) to the depositor, promptly after any deposit referred to in Rule 6 or any transfer referred to in Rule 5.1;
- (ii) to the depositor, on his request, at any time after the deposit or transfer;
- (iii) to any industrial property office, other authority, natural person or legal entity, other than the depositor, to whom or to which samples of the deposited microorganism were furnished in conformity with Rule 11, on his or its request, together with or at any time after such furnishing of samples.

(b) The viability statement shall indicate whether the microorganism is or is no longer viable and shall contain:

- (i) the name and address of the international depositary authority issuing it;
 - (ii) the name and address of the depositor;
 - (iii) the date referred to in Rule 7.3(iii) or, where a new deposit or a transfer has been made, the most recent of the dates referred to in Rules 7.4(iii) and 7.5(iii);
 - (iv) the accession number given by the said authority;
 - (v) the date of the test to which it refers;
 - (vi) information on the conditions under which the viability test has been performed, provided that the said information has been requested by the party to which the viability statement is issued and that the results of the test were negative.
- (c) In the cases of paragraph (a)(ii) and (iii), the viability statement shall refer to the most recent viability test.

(d) As to form, languages and signature, Rule 7.2 shall apply, *mutatis mutandis*, to the viability statement.

(e) In the case of paragraph (a)(i) or where the request is made by an industrial property office, the issuance of the viability statement shall be free of charge. Any fee payable under Rule 12.1(a)(iii) in respect of any other viability statement shall be chargeable to the party requesting the statement and shall be paid before or at the time of making the request.

Keywords/Triggers:

microorganism viability test, viability statement, patent microorganism viability, biological material testing, deposited microorganism viability, patent deposit test, microorganism storage

RULE 11

Title: Furnishing of Microorganism Samples

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 11, 2023

Plain English Summary:

Rule 11 establishes when an International Depositary Authority must provide samples of a deposited microorganism. Samples can be supplied to interested industrial property offices, the depositor or authorized parties, and parties legally entitled to receive them under the applicable patent procedure.

For an Ayurvedic invention involving a deposited microorganism, this is highly relevant because it governs who can obtain the biological sample and under what patent-related conditions.

The Exact Legal Text:

Rule 11

Furnishing of Samples

11.1 Furnishing of Samples to Interested Industrial Property Offices

Any international depositary authority shall furnish a sample of any deposited microorganism to the industrial property office of any Contracting State or of any intergovernmental industrial property organization, on the request of such office, provided that the request shall be accompanied by a declaration to the effect that:

(i) an application referring to the deposit of that microorganism has been filed with that office for the grant of a patent and that the subject matter of that application involves the said microorganism or the use thereof;

(ii) such application is pending before that office or has led to the grant of a patent;

(iii) the sample is needed for the purposes of a patent procedure having effect in the said Contracting State or in the said organization or its member States;

(iv) the said sample and any information accompanying or resulting from it will be used only for the purposes of the said patent procedure.

11.2 Furnishing of Samples to or with the Authorization of the Depositor

Any international depositary authority shall furnish a sample of any deposited microorganism:

(i) to the depositor, on his request;

(ii) to any authority, natural person or legal entity (hereinafter referred to as “the authorized party”), on the request of such party, provided that the request is accompanied by a declaration of the depositor authorizing the requested furnishing of a sample.

11.3 Furnishing of Samples to Parties Legally Entitled

(a) Any international depositary authority shall furnish a sample of any deposited microorganism to any authority, natural person or legal entity (hereinafter referred to as “the certified party”), on the request of such party, provided that the request is made on a form whose contents are fixed by the Assembly and that on the said form the industrial property office certifies:

(i) that an application referring to the deposit of that microorganism has been filed with that office for the grant of a patent and that the subject matter of that application involves the said microorganism or the use thereof;

(ii) that, except where the second phrase of (iii) applies, publication for the purposes of patent procedure has been effected by that office;

(iii) either that the certified party has a right to a sample of the microorganism under the law governing patent procedure before that office and, where the said law makes the said right dependent on the fulfillment of certain conditions, that that office is satisfied that such conditions have actually been fulfilled or that the certified party has affixed his signature on a form before that office and that, as a consequence of the signature of the said form, the conditions for furnishing a sample to the certified party are deemed to be fulfilled in accordance with the law governing patent procedure before that office; where the certified party has the said right under the said law prior to publication for the purposes of patent procedure by the said office and such publication has not yet been effected, the certification shall expressly state so and shall indicate,

by citing it in the customary manner, the applicable provision of the said law, including any court decision.

(b) In respect of patents granted and published by any industrial property office, such office may from time to time communicate to any international depositary authority lists of the accession numbers given by that authority to the deposits of the microorganisms referred to in the said patents. The international depositary authority shall, on the request of any authority, natural person or legal entity (hereinafter referred to as "the requesting party"), furnish to it a sample of any microorganism where the accession number has been so communicated. In respect of deposited microorganisms whose accession numbers have been so communicated, the said office shall not be required to provide the certification referred to in Rule 11.3(a).

11.4 Common Rules

(a) Any request, declaration, certification or communication referred to in Rules 11.1, 11.2 and 11.3 shall be:

(i) in Arabic, Chinese, English, French, Russian or Spanish where it is addressed to an international depositary authority whose official language is or whose official languages include Arabic, Chinese, English, French, Russian or Spanish, respectively, provided that, where it must be in Arabic, Chinese, Russian or Spanish, it may be instead filed in English or French and, if it is so filed, the International Bureau shall, on the request of the interested party referred to in the said Rules or the international depositary authority, establish, promptly and free of charge, a certified translation into Arabic, Chinese, Russian or Spanish;

(ii) in all other cases, it shall be in English or French, provided that it may be, instead, in the official language or one of the official languages of the international depositary authority.

(b) Notwithstanding paragraph (a), where the request referred to in Rule 11.1 is made by an industrial property office whose official language is Arabic, Chinese, Russian or Spanish, the said request may be in Arabic, Chinese, Russian or Spanish, respectively, and the International Bureau shall establish, promptly and free of charge, a certified translation into English or French, on the request of that office or the international depositary authority which received the said request.

(c) Any request, declaration, certification or communication referred to in Rules 11.1, 11.2 and 11.3 shall be in writing, shall bear a signature and shall be dated.

(d) Any request, declaration or certification referred to in Rules 11.1, 11.2 and 11.3(a) shall contain the following indications:

(i) the name and address of the industrial property office making the request, of the authorized party or of the certified party, as the case may be;

(ii) the accession number given to the deposit;

(iii) in the case of Rule 11.1, the date and number of the application or patent referring to the deposit;

(iv) in the case of Rule 11.3(a), the indications referred to in (iii) and the name and address of the industrial property office which has made the certification referred to in the said Rule.

(e) Any request referred to in Rule 11.3(b) shall contain the following indications:

(i) the name and address of the requesting party;

(ii) the accession number given to the deposit.

(f) The container in which the sample furnished is placed shall be marked by the international depositary authority with the accession number given to the deposit and shall be accompanied by a copy of the receipt referred to in Rule 7, an indication of any properties of the microorganism which are or may be dangerous to health or the environment and, upon request, an indication of the conditions which the international depositary authority employs for the cultivation and storage of the microorganism.

(g) The international depositary authority having furnished a sample to any interested party other than the depositor shall promptly notify the depositor in writing of that fact, as well as of the date on which the said sample was furnished and of the name and address of the industrial property office, of the authorized party, of the certified party or of the requesting party, to whom or to which the sample was furnished. The said notification shall be accompanied by a copy of the pertinent request, of any declarations submitted under Rules 11.1 or 11.2(ii) in connection with the said request, and of any forms or requests bearing the signature of the requesting party in accordance with Rule 11.3.

(h) The furnishing of samples referred to in Rule 11.1 shall be free of charge. Where the furnishing of samples is made under Rule 11.2 or 11.3, any fee payable under Rule 12.1(a)(iv) shall be chargeable to the depositor, to the authorized party, to the certified party or to the requesting party, as the case may be, and shall be paid before or at the time of making the said request.

11.5 Changes in Rules 11.1 and 11.3 when Applying to International Applications

Where an application was filed as an international application under the Patent Cooperation Treaty, the reference to the filing of the application with the industrial property office in Rules 11.1(i) and 11.3(a)(i) shall be considered a reference to the designation, in the international application, of the Contracting State for which the industrial property office is the “designated Office” within the meaning of that Treaty, and the certification of publication which is required by Rule 11.3(a)(ii) shall, at the option of the industrial property office, be either a certification of international publication under the said Treaty or a certification of publication by the industrial property office.

Keywords/Triggers:

microorganism sample, patent sample request, deposited microorganism, industrial property office, legally entitled party, PCT microorganism deposit, biological patent sample, accession number.

RULE 12

Title: Fees for Microorganism Deposits

Jurisdiction: International

Category: Patents

Source Citation: Regulations under the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Rule 12, 2023

Plain English Summary:

Rule 12 specifies the types of fees that an International Depositary Authority may charge. These can include fees for storage, viability statements, furnishing samples, attestations, and communicating information.

For an Ayurvedic startup or researcher, this is relevant when budgeting for a microorganism deposit used in a patent procedure.

The Exact Legal Text:

Rule 12

Fees

12.1 Kinds and Amounts

(a) Any international depositary authority may, with respect to the procedure under the Treaty and these Regulations, charge a fee:

(i) for storage;

(ii) for the attestation referred to in Rule 8.2;

(iii) subject to Rule 10.2(e), first sentence, for the issuance of viability statements;

(iv) subject to Rule 11.4(h), first sentence, for the furnishing of samples;

(v) for the communication of information under Rule 7.6.

(b) The fee for storage shall be for the whole duration of the storage of the microorganism as provided in Rule 9.1.

(c) The amount of any fee shall not vary on account of the nationality or residence of the depositor or on account of the nationality or residence of the authority, natural person or legal entity requesting the issuance of a viability statement or furnishing of samples.

12.2 Change in the Amounts

(a) Any change in the amount of the fees charged by any international depositary authority shall be notified to the Director General by the Contracting State or intergovernmental industrial property organization which made the declaration referred to in Article 7(1) in respect of that authority. The notification may, subject to paragraph (c), contain an indication of the date from which the new fees will apply.

(b) The Director General shall promptly notify all Contracting States and intergovernmental industrial property organizations of any notification received under paragraph (a) and of its effective date under paragraph (c); the notification of the Director General and the notification received by him shall be promptly published by the International Bureau.

(c) Any new fees shall apply as of the date indicated under paragraph (a), provided that, where the change consists of an increase in the amounts of the fees or where no date is so indicated, the new fees shall apply as from the thirtieth day following the publication of the change by the International Bureau.

Keywords/Triggers:

Budapest Treaty fees, microorganism deposit fee, storage fee, viability statement fee, sample furnishing fee, patent deposit cost, international depositary fees, biological patent expenses